

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY

2026 FEB 23 A 9:25

In the Matter of:
Al-mira Amira Jazmine Davis, a Child

Case No: 25JU04261

REVIEW JUDGMENT

This matter came before the court on February 23, 2026

Persons appearing:	
Child ☐ : Al-mira Amira Jazmine Davis	Attorney ☐ : Ridehalgh & Associates – Ryan Lhotsky
Mother/Parent ☐ : Ashle Antoinette Penn	Attorney ☐ :
Father/Parent ☐ : Alquan Adam Davis	Attorney ☐ : Hillsboro Law Group – Yvana Mols
Alleged Genetic Parent ☐ :	Attorney ☐ :
Indian Custodian ☐ :	Attorney ☐ :
Tribe ☐ :	Tribe Atty/Rep ☐ :
CASA ☐ : Lisa MacLellan	Assist. Atty Gen'l ☐ : Yazmin Wadia
Guardian ☐ :	Other ☐ :
ODHS Caseworker ☐ : David Milne	Other ☐ :
Guardian Ad Litem ☐ :	

Relevant Dates

Date the child was last placed in substitute care:

Date the child was placed in current placement:

ODHS Documentation: The Department of Human Services (ODHS) ☒ **has** ☐ **has not** submitted the report required by ORS 419B.440 and 419B.443

Indian Child Welfare Act (ICWA/ORICWA) Findings

ODHS ☒ did ☐ did not make a good faith effort under ORICWA to determine whether the child is an Indian child

(or) ☐ The Court previously found ODHS has made a good faith effort under ORICWA to determine whether the child is an Indian child

At this time, the court does not have reason to know that ICWA/ORICWA applies. No individual present at the hearing knows or has reason to know the child is an Indian child under ICWA/ORICWA, and there is no additional information that has been presented that provides the court reason to know that ICWA/ORICWA applies. Or Laws 2020, ch. 14, §15.

Standard of Proof & Evidence Considered

The findings made below are based on a preponderance of the evidence.

The court considered the following evidence in making the findings and orders in this Judgment:

- ☐ Stipulations by the parties
- ☒ The exhibits admitted by the court
- ☒ The testimony of the witnesses at the hearing
- ☐ The following facts/law, of which the court has taken judicial notice:
- ☐ Other:

THE COURT MAKES THE FOLLOWING FINDINGS AND ORDERS:

1. JURISDICTION AND WARDSHIP

The child was found to be within the juvenile court's jurisdiction by judgment entered on 10/31/2025

2. NOTICE AND PARTICIPATION

► Grandparents

☒ ODHS ☒ **made** ☐ **did not make** diligent efforts to identify, obtain contact information for, and notify all grandparents of the hearing.

☒ No grandparents attended the hearing, **or**

The following grandparents attended the hearing and had an opportunity to be heard:

Maternal:

☐ Grandmother ☐ Grandfather

Paternal:

☐ Grandmother ☐ Grandfather

☐ The grandparents who attended the hearing were informed of the date of a future hearing

☐ ODHS **did not** give the grandparents notice of the hearing because a prior order relieved ODHS of notice requirements *or other (explain):*

☐ For good cause shown, the court relieves ODHS of the responsibility to provide notice of this hearing to ☐ all grandparents *or* ☐ the following grandparents:

► Foster Parents or Care Providers

☒ The child is in substitute care and ODHS ☒ **did** ☐ **did not** give the foster parents or current care providers notice of the hearing

☒ The foster parents or current care providers **did not attend** the hearing

☐ The foster parents or current care providers **attended** the hearing and had an opportunity to be heard

3. PLACEMENT FINDINGS

The child's current placement is: ☐ in home with parent or guardian **or**

substitute care: ☒ relative ☐ current caretaker ☐ non-relative/non-current caretaker

☐ permanent foster care ☐ residential ☐ adoptive resource ☐ other:

➤ Current placement ☒ is ☐ is not in the best interest of the child

➤ Proposed placement ☐ is ☐ is not in the best interests of the child

ICWA Placement preferences:

n/a

4. DILIGENT EFFORTS – CHILD IN SUBSTITUTE CARE

► **Relative Placement**

☒ The child is in substitute care. ODHS ☒ **has made** ☐ **has not made** diligent efforts to place the child with a relative or person who has a caregiver relationship with the child as required by ORS 419B.192

☐ ODHS has decided to place the child with a relative or person who has a caregiver relationship with the child, but that placement is not in the child's best interest because:

► **Sibling Placement:**

☐ The child is in substitute care and has one or more siblings. ODHS ☐ **has made** ☐ **has not made** diligent efforts to place the child with a sibling as required by ORS 419B.192

☐ Placement together is not in the best interests of the child or sibling

5. NUMBER OF PLACEMENTS, VISITS, SCHOOL CHANGES, AND ODHS CONTACTS

Since the child has been in the legal custody and guardianship of ODHS the child has had:

	Number	Is the number in the child's best interest?	
Face to face contacts with caseworker	16	☐ yes	☐ no
Out of home placements	1	☐ yes	☐ no
Visits with Mother/Parent	0	☐ yes	☐ no
Visits with Father/Parent	0	☐ yes	☐ no
Visits with sibling(s)		☐ yes	☐ no
Schools attended		☐ yes	☐ no

► **SCHOOL OF ORIGIN**

☐ The court finds **it is** in the child's best interest to attend the child's school of origin

☐ The court finds **it is not** in the child's best interest to attend the child's school of origin or any other school in the child's district of origin

6. EDUCATION (child 14 or older)

☐ The child has graduated from high school

☒ The child is 14 years of age or older and the child ☐ **is** ☒ **is not** progressing toward graduation from high school. The child needs ∑ credits to graduate, and is expected to graduate on (date)∑

☐ ODHS has made the following efforts to assist the child toward graduation: ∑

☐ ODHS is ordered to made the following additional efforts: ∑

7. ACTIVITIES (CHILD IN APPLA PLAN)

☐ The court finds ODHS ☐ has ☐ has not taken sufficient steps to ensure that the ward's substitute care provider is following the reasonable and prudent parent standard and the ward has regular, ongoing opportunities to engage in age-appropriate or developmentally appropriate activities. Those steps include: ∑

☐ attached as Exhibit and adopted as the court's written findings

8. REASONABLE OR ACTIVE EFFORTS FINDINGS

PERMANENT PLAN OF REUNIFICATION

► Reunification efforts findings required

This case is not an ICWA case. Therefore, ODHS is required to make reasonable efforts to reunify the family. ODHS ☒ **has** ☐ **has not** made reasonable efforts to reunify the family during the period under review at this hearing. The court considered whether placement of the child and referral to the Strengthening, Preserving and Reunifying Families Program is in the child's best interest as required by ORS 418.595.

Brief description of efforts ☒ received in Exhibit 1 and adopted as the court's written findings *or* as follows: Σ

► Reunification efforts findings **not** required

☐ A determination whether ODHS made reasonable or active efforts to reunify the family is not required because ☐ the child is not committed to the legal custody of ODHS ☐ one or more circumstance listed at 419B.340(5) &(6) apply *and* this is not an ICWA case { ☐ Mother/Parent ☐ Father/Parent } ☐ Other:

PERMANENT PLAN **OTHER** THAN REUNIFICATION

The permanent plan in effect at the time of the hearing is ☐ Adoption ☐ Tribal customary adoption ☐ Permanent guardianship under ORS 419B.365 ☐ Guardianship under ORS 419B.366 ☐ Placement with a fit and willing relative ☐ A planned permanent living arrangement (APPLA) which is: ☐ permanent foster care ☐ permanent connections and support (residential treatment, independent living, substitute caregiver).

ODHS ☐ **has** ☐ **has not** made reasonable efforts to place the child in a timely manner (including, if applicable, in an interstate placement) in accordance with the plan and to finalize the child's permanent placement. The ODHS efforts include: ☐ attached as Exhibit _____ and adopted as the court's written findings *or* as follows: Σ

9. CASE PLAN COMPLIANCE AND PROGRESS

<u>ODHS:</u>	The current case plan is reunification ODHS ☒ is ☐ is not in compliance with the plan
<u>Mother/Parent:</u>	☐ Mother/Parent is involved in this case and ☐ has ☒ has not made sufficient progress toward meeting the expectations set forth in the service agreement, letter of expectation, or case plan. The child ☐ can be ☒ cannot be ☐ has been safely returned to mother/parent's care. Refusing to engage, actively avoiding the agency ☐ Mother/Parent is not involved in the case because parental rights were terminated or relinquished or mother/parent is deceased
<u>Father/Parent:</u>	☐ Father/Parent is involved in this case and ☒ has ☐ has not made sufficient progress toward meeting the expectations set forth in the service agreement, letter of expectation, or case plan. The child ☐ can be ☒ cannot be ☐ has been safely returned to father/parent's care. *Has criminal court contact limitations but

	otherwise is engaging with the agency*
	☐ Father/Parent is not involved in the case, because parental rights were terminated or relinquished or father/parent is deceased

10. CONCURRENT PLANNING (WHEN PLAN IS REUNIFICATION)

☐ There **is** a concurrent plan. That plan is ☐ Adoption ☐ Tribal customary Adoption
☐ Permanent guardianship under ORS 419B.365 ☐ Guardianship under ORS 419B.366 ☐
 Placement with a fit and willing relative
☐ A Planned Permanent Living Arrangement (APPLA) which is: ☐ permanent foster care
☐ permanent connections and support (residential treatment, independent living, substitute caregiver).

☐ ODHS has made the following efforts to develop the concurrent plan which ☐ **include** ☐
do not include efforts to identify appropriate permanent placement options both inside and outside this state:Σ

Those efforts ☐ **are** ☐ **are not** sufficient. ☐ ODHS is ordered to make the following additional efforts to develop the concurrent plan and report those efforts to the court:

11. SUBSTITUTE CARE DETERMINATION

☒ Continued substitute care is necessary because: mother not participating, Dad in engaging but has criminal court contact limitations. The expected timetable for return of the child to the parents or placement in a permanent placement is: Σ

☐ Substitute care is no longer necessary because:

☐ The child is placed with the parents and it is in the best interest of the child to continue in the legal custody of ODHS because:Σ .

Termination of the child's commitment is expected to occur by (date)Σ

Termination of juvenile court wardship is expected to occur by (date)

☐ The child will be placed in substitute care (from home) under ORS 419B.449(5). The court finds:

THE COURT ORDERS THAT:

► **Wardship:** ☒ The child will remain a ward of the court *or* ☐ wardship is dismissed

► **Custody:** ☒ The child is placed or continued in the legal custody and guardianship of
☒ ODHS ☐ other:

Under ORS 419A.255(4)(a)(C), the Court consents to the use and disclosure of records, reports, materials or documents in the record of the case or the supplemental confidential file by ODHS if such use and

disclosure is reasonably necessary to perform its official duties related to the involvement of the child with the juvenile court.

► **Placement:** ☒ The child will remain in substitute care

☐ Based on the court's finding that the current or proposed placement is not in the best interests of the child, ODHS is ordered to place or maintain the child: ☐ in home with parent or ☐ substitute care with: ☐ relative ☐ current caretaker ☐ non-relative/non-current caretaker ☐ residential
☐ Other:

► **ICWA/ORICWA:** ☐ ODHS must make diligent efforts to identify and work with all of the applicable tribes to verify whether the child is a member or eligible for membership and submit a written report on those efforts for the next hearing.

► **Case Plan:** ☐ ODHS is ordered to develop or modify the case plan as follows within Σ days after this review hearing and to provide a case progress report to the court and the following parties: Σ

► **Concurrent Plan:** ☐ ODHS is ordered to make the following additional efforts to develop the concurrent plan and report those efforts to the court: Σ

► **Parents:**

☒ **Mother/Parent:** Between now and the next court hearing, mother/parent must participate in the following services and make the progress specified below:

Services: Maintain contact with the agency, participate in previously ordered services, clear all warrants.

Progress:

☒ **Father/Parent:** Between now and the next court date, father/parent participate in the following services and make the progress specified below:

Services: participate in the court ordered services that he can, comply with criminal court orders.

Progress:

► **Education:** ☐ ODHS is ordered to:

► **ICWA/ORICWA:** Each party is required to inform the court immediately if the party receives information that provides reason to know the child is an "Indian Child." ODHS is ordered to continue its inquiry into whether the child is an "Indian Child" and report the results of the inquiry to the court.

► **Visitation:**

► **Additional Orders:**

☐ All prior orders not in conflict with this order remain in effect.

All parties present were notified of these court dates and are ordered to appear

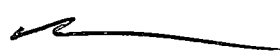
Future Proceedings:

<u>Type</u>	<u>Date</u>	<u>Time</u>
<u>Review Hearing</u>		
<u>Permanency Hearing</u>	<u>June 29, 2026</u>	<u>9:00am</u>
If the child is in the legal custody of ODHS and placed in substitute care, the CRB will conduct a review of this case in	☐ 6 months ☐ 3 months	DOCKETED
Other		

☐ No further review necessary

All parties in attendance were notified of these court dates and are ordered to appear.

February 23, 2026


Michele C. Rini Circuit Court Judge

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
JUVENILE DEPARTMENT

In the Matter of) Case No. 25JU04261
AL-MIRA AMIRA JAZMINE DAVIS,)
A Child.) REVIEW HEARING
)

THIS MATTER came before the Court on February 23, 2026, at 9:00am.

Present at the hearing were:

Juvenile Counselor ODHS David Milne

Child(ren) / Youth Al Mira OYA

Child(ren)/Youth's Attorney Ryan Lhotsky

Mother Ashle Antoinette Penn Mother's Attorney

Father Alquan Adam Davis Father's Attorney Yvana Mols

Assistant Attorney General Yazmin Wadia

CASA Koko Fuji, Lisa MacLellan, Alta Murphy

Resource Parent(s)

Grandparent(s)

Other Alexa - Youth Mentor

REVIEW HEARING COVER SHEET